

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504126	CARONNA VS CALIFORNIA BAPTIST UNIVERSITY	DEMURRER ON 3RD AMENDED COMPLAINT

Tentative Ruling:

SUSTAIN the demurrer with 30 days leave to amend. This will be Plaintiffs final opportunity to correct the pleadings.

Statute of Limitations.

All of Plaintiff's claims are based on negligence. A two-year statute of limitations applies to negligence claims. (CCP § 339(1).) Plaintiff filed suit outside of the two-year period, however, Plaintiff has pled that she pursued internal complaints and remedies through Defendant's administrative processes. The statute of limitations may be subject to equitable tolling, but Plaintiff here fails to plead facts demonstrating equitable tolling. Sustain the demurrer with leave.

Negligence

Plaintiff pleads no facts demonstrating that Defendant owed a duty to her—other than there was a “student-university relationship.” While there is a special relationship between a college and its students, that relationship is limited “to protect students from foreseeable violence during curricular activities.” (*Regents of the University of California v. Superior Court* (2018) 4 Cal.5th 607, at 634.) There is no duty to protect students from harm of a nonphysical nature. (*Thomas v. Regents of the University of California* (2023) 97 Cal.App.5th 587, 627.) Plaintiff cites to no authority indicating Defendant owes a duty of care to her. Sustain the demurrer.

Negligent Infliction of Emotional Distress

Once again, Plaintiff fails to plead any facts showing that Defendant had a duty to her. Sustain the demurrer.

Negligent Supervision and Retention

Liability for this cause of action has to be based on the facts that the employer knew or should have known about the employee that caused the harm. Here, Plaintiff fails to plead any facts that Defendant knew or should have known of the abusive conduct. Sustain the demurrer.

Negligent Misrepresentation

Plaintiff fails to plead any facts with the required specificity. A Plaintiff must allege what was said, by whom, and in what manner (i.e. oral or in writing), and when it was said. In addition, Plaintiff does not plead past existing facts. “[A]n actionable misrepresentation

must be made about past or existing facts; statements regarding future events are merely deemed opinions.” (*Neu-Visions Sports, Inc. v. Soren/McAdam/Bartells* (2000) 44 Cal.App.4th 303, 309-310.) The statement that Plaintiff “met the qualifications necessary to succeed” is a statement of the future, which is merely an opinion, and not an actionable misrepresentation. Sustain the demurrer.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504126	CARONNA VS CALIFORNIA BAPTIST UNIVERSITY	MOTION TO STRIKE 3RD AMENDED COMPLAINT

Tentative Ruling:

DENY as moot.

The court has sustained Defendant’s demurrer in its entirety, rendering the motion to strike as moot.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505820	REESE VS JAMES	MOTION TO APPOINT APPRAISER TO DETERMINE FAIR MARKET VALUE UNDER PARTITION OF REAL PROPERTY ACT

Tentative Ruling:

GRANT